AURUM VALLEY ENTERPRISES (PRIVATE) LIMITED
versus
BARRINGTON MAWERE.
and
SONGJI MINING (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 29 June and 9 July 2026

Spoliation

N S Majojo, for the Applicant
M N Garakara, for the 1st Respondent
A Nyamukondiwa, for the 2nd Respondent

MAMBARA J:

[1] This matter started of as an urgent chamber application for a spoliation order. It did not remain on the urgent roll. It was struck off the urgent roll and transferred to the ordinary roll. I thereafter heard the parties on written and oral submissions. What now falls for determination is whether, on the papers as filed and as framed, this court can competently entertain the matter as a true application for a mandament *van spolie.*

[2] Mr Majojo, for the applicant, submitted that the applicant's case rests on an agreement of sale signed in July 2023, an addendum of December 2023, an attempted cancellation in May 2025, and a later compromise agreement of 3 June 2025. He argued that the applicant took possession of the dump from 2023, remained in possession, and was physically ousted on 6 June 2026 with the assistance of the Criminal Investigation Department and persons acting for the first respondent. The central theme of his argument was that the court must ignore questions of title and contract and restore possession first. That is, of course, orthodox spoliation doctrine in the abstract. The difficulty in this matter lies elsewhere: in competence, in form, and in the unsatisfactory state of the record on possession.

[3] Mrs Garakara, for the first respondent, raised a number of points *in limine*. They included lack of proper corporate authority, material falsehoods regarding the dates and circumstances

of the alleged sale agreements, *lis pendens,* and the proposition that the relief in the draft order was not truly spoliatory but a disguised interdict. Mr Nyamukondiwa, for the second respondent, supported the attack on authority and on the merits, arguing that the applicant never had peaceful and undisturbed possession and that the pending contractual action and pending appeal are the proper vehicles for the substantive controversy. Those submissions find substantial support in the record.

[4] The litigation history is not in dispute. The applicant previously sued under HCH 3722/25 for specific performance compelling the first respondent to abide by the agreement of sale and accept the purchase price tendered by the applicant, alternatively for damages in the sum of US$778 000. The same record shows that the applicant also brought an urgent anti-dissipation application under HCH 4338/25, which CHITAPI J dismissed in HH 408/26. The applicant has since noted an appeal to the Supreme Court under SC 537/26. Those matters are alive. They are not peripheral. They constitute the procedural environment within which the present application must be understood.

[5] In my view, four matters are decisive. The first is authority. The second is that the draft order is not a pure *mandament van spolie* but a composite remedy that includes interim interdictory protection pending HCH 3722/25. The third is that the applicant's own pleadings in HCH 3722/25, read with HH 408/26, reveal that the real controversy is over contractual entitlement and commercial control of the dump. The fourth is that the alleged possession of the dump site itself is the subject of serious and genuine disputes of fact on motion papers seeking final relief.

Authority and competence

[6] The founding affidavit states that the deponent, Alastair Ackhurst, was authorised "in terms of an extant resolution of the board" and attaches that resolution. The attached board resolution is dated 25 August 2025. Its wording is not general. It authorises the company to file "an urgent chamber application against Barrington Mawere" and appoints Mr Ackhurst to represent the company in "all matters pertaining to the urgent chamber application." The resolution predates the June 2026 allegations by many months, and on its face it is linked to the urgent chamber application already filed in 2025, namely the anti-dissipation

proceedings. It is not framed as a standing authorisation for any future proceedings arising from the parties' relationship; nor does it authorise proceedings against the second respondent.

[7] That is why the point in limine cannot be brushed aside as technical. In *Avim Investments (Pvt) Ltd* v *Livetouch Investments (Pvt) Ltd & Anor* HH 157/26, the court stated that the purpose of a resolution is to show that the company is aware of the current proceedings and that the deponent has authority to act on its behalf, and that the resolution must "specifically speak to the current proceedings." In *ZIMRA* v *Leapium Holdings & 3 Ors* HB 47/26, the court observed that it is desirable for litigants to file resolutions that are recent and relevant to the subject matter. Those are not empty forensics. They go to the juridical existence of proceedings purportedly brought in the name of a company.

[8] Here, the record does not place before me a resolution that specifically authorises this spoliation application as framed. I am therefore unable to say, from the papers properly before me, that the applicant company has shown that it consciously and lawfully authorised this distinct proceeding. In a matter already crowded with pending litigation, and where the present draft order reaches beyond bare restoration into interim regulation of possession pending another case, that omission is fatal.

The nature of a mandament *van spolie*

[9] The classic definition was given in *Nino Bonino* v *De Lange* 1906 TS 120, where Innes CJ said:

> "The best definition I have been able to find is one given by Leyser, who states that spoliation is any illicit deprivation of another of the right of possession which he has, whether in regard to movable or immovable property or even in regard to a legal right."

[10] The remedy is possessory, not proprietary. That proposition is reflected in the authorities cited in the record, including *Botha and Another* v *Barrett* 1996 (2) ZLR 73 (S), *Kama Construction (Private) Ltd* v *Cold Comfort Farm Co-operative & Ors* 1999 (2) ZLR 19 (S), and *Chisveto* v *Minister of Local Government & Town Planning* 1984 (1) ZLR 248 (S). A

court hearing spoliation does not decide ownership and does not enforce contracts. It restores possession that was peacefully held and unlawfully taken.

[11] Equally important is the onus. The first respondent's heads cite *Yeko* v *Qana* 1973 (4) SA 735 (A) at 739E for the proposition that:

> "In order to obtain a spoliation order the onus is on the applicant to prove the required possession, and that he was unlawfully deprived of such possession."

[12] That proposition is decisive here because the applicant seeks final relief on motion. Where final relief is sought and material disputes of fact arise, the matter is ordinarily approached on the facts stated by the respondent together with those admitted by the applicant. The record reflects that point as well, through the citation of *Plascon-Evans Paints Ltd* v *Van Riebeeck Paints (Pty)* Ltd 1984 (3) SA 623 (A) and more recent local authority. I therefore cannot simply assume possession because the applicant asserts it with confidence. It must be proved on the papers, and proved in respect of the very thing allegedly spoliated.

Why this application is not a pure spoliation application

[13] The problem with the applicant's case is not merely that the respondents contest possession. It is that the draft order itself reveals that the application has been framed as more than a possessory restoration. The draft final order seeks restoration of possession, removal of fences and obstructions, return of tools and equipment, and then, critically, an order that the respondents be interdicted from interfering with the applicant's possession "pending the final determination of the main action under Case No. HCH 3722/25 or any other competent court order." That paragraph is not a mere incident of restoration. It is interdictory regulation of the parties' future relationship pending the contract action.

[14] Once that is appreciated, the overlap with HH 408/26 becomes impossible to ignore. *In Aurum Valley Enterprises (Pvt) Ltd* v *Barrington Mawere & Anor* HH 408/26, CHITAPI J, with R Goba appearing for the applicant, M N Garakara for the first respondent, and A Nyamurondiwa for the second respondent, dismissed the anti-dissipation application arising from the same commercial contest over the same dump. In that judgment, the court expressly held that the applicant had not shown the absence of an alternative remedy because it had

already claimed damages in HCH 3722/25, and further held that "[t]he balance of convenience favour that the exploitation of the dump should not be arrested in the circumstances." The court added that the applicant had not established a prima facie case and that its paper trail was incongruent.

[15] I do not treat HH 408/26 as creating *res judicata* against a true spoliation claim. A spoliation cause of action is distinct from an anti-dissipation interdict. But I also cannot permit a litigant to re-enter by the side door and obtain substantially protective interim control over the same commercial asset, pending HCH 3722/25, through a draft order that is not confined to restoration simpliciter. The court must look at substance and function, not label alone. In substance, paragraph 4 of the draft order is a renewed regulatory interdict attached to a disputed possessory claim.

[16] Moreover, the applicant's own summons and declaration in HCH 3722/25 show where its real contest lies. It asks the court there to compel the first respondent to abide by the agreement of sale and accept the purchase price tendered, alternatively to pay damages said to have been incurred in preparation for processing the dump. The declaration pleads that the agreement of 3 June 2025 superseded prior agreements and constitutes the valid and binding agreement between the parties. That is a classic contractual claim to entitlement and performance. It is not a pleading of an already settled possessory status.

The factual disputes on possession

[17] The applicant says it has been in peaceful and undisturbed possession of the dump since 2023, had a security guard at the site, and invested heavily in infrastructure. The first respondent and second respondent answer that the applicant's infrastructure and occupation relate substantially to Dolomac 20 and not to the dump at Indarama Mine; that the dump site itself was not occupied by the applicant as alleged; that the applicant's agents were arrested while removing material from the dump; and that any fence was erected only after those arrests as a control measure. Those are not fanciful disputes. They are concrete, location-specific, and go to the heart of corpus and animus.

[18] The papers themselves show the distinction in geography and use. The founding papers record the separate agreement concerning Dolomac 20. The first respondent's opposing affidavit states that the alleged power line, borehole and related works were not at the dump but kilometres away at Dolomac 20. The second respondent likewise argues that the applicant bought another mining site from Anne Mawere for purposes of processing the dump and that the improvements relied upon are not by the dump site. If that is so, investment in processing infrastructure elsewhere may prove commercial expectation; it does not, without more, prove peaceful possession of the dump itself.

[19] There is also a troubling inconsistency in the applicant's own chronology. In the spoliation founding affidavit, the applicant alleged that HCH 3722/25 was filed on 28 January 2026. Yet the summons in HCH 3722/25, as contained in the record, were issued in July 2025. That may seem minor, but in a case already beset by conflicting narratives around the agreements of 2023 and 2025, the date discrepancy contributes to a broader impression of unsatisfactory pleading.

[20] The same is true of the sale documents. The record contains a July 2023 arrangement, a December 2023 addendum, and a later 3 June 2025 agreement whose clause 17.3 states that it constitutes the whole agreement between the parties and supersedes previous agreements for the sale and purchase of the dump. HH 408/26 specifically seized on that structure and found that the narrative was unclear and that the 3 June 2025 agreement presented by the applicant was a stand-alone agreement, not a mere continuation of earlier ones. That observation matters because the applicant's present possession case is interwoven with the contractual narrative in a way that makes the supposed possessory status anything but self-evident.

[21*] Mr Majojo* urged that the respondents' invocation of "counter-spoliation" was a formal admission that the applicant had possession. I do not agree. A pleading must be read as a whole. The respondents consistently deny longstanding peaceful possession and say, in substance, that if the applicant had any physical control at all, it was in the course of what they characterise as unlawful removal of dump material from 4 to 6 June 2026, followed by immediate repossession and arrest. That is not an unequivocal admission of the sort that relieves an applicant of the onus imposed by *Yeko* v *Qana*; it is a disputed alternative characterisation of the same events.

[22] Nor can I ignore that the applicant seeks, in HCH 3722/25, specific performance compelling delivery and acceptance of price, while at the same time insisting here that possession had long since passed and remained undisturbed until June 2026. Those positions may perhaps be harmonised by skilled pleading, but on the papers before me they are not transparently harmonised. At the very least they show that the present matter cannot responsibly be determined as a clean, self-contained spoliation application on motion.

Why the proper order is to strike the matter off the roll

[23] I do not consider it necessary, or prudent, to make definitive findings on the contractual merits, on the validity of the competing agreements, on the alleged cancellation, on the alleged double sale, or on the ultimate right to exploit the dump. Those are precisely the controversies that HCH 3722/25 and the pending Supreme Court appeal are designed to address. It would be undesirable for this court, in a procedurally defective application, to pronounce on those matters under the guise of deciding possession.

[24] What the court can and should say is this. The applicant has not placed before the court proper authority for this distinct application. The relief sought is not confined to restoration *ante omnia* but includes interim interdictory regulation pending HCH 3722/25. The alleged possession of the dump itself is mired in serious factual disputes that are inseparable from the ongoing contractual litigation and from the distinction between the dump site and Dolomac 20. In those circumstances, the application is not properly before the court as framed.

[25] A strike-off, rather than a dismissal on the merits, is therefore the proper course. It avoids prejudging the pending contract action and the pending appeal. It preserves the integrity of the court and those incomplete processes. It recognises that the dump, the subject matter of all the litigation is now *res litigiosa*. It also leaves untouched any competent proceedings that the parties may pursue in accordance with law and proper authority. But this application, in its present form, cannot stand on the roll.

[26] In the result, it is ordered that:

1) The application is struck off the roll.

2) The applicant shall pay the first and second respondents' costs on the ordinary scale.

MAMBARA J……

Absolom & Shepherd Attorneys, applicant's legal practitioners
Matsika Legal Practitioners, first respondent's legal practitioners
Mark Attorneys, second respondent's legal practitioners